Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1033
Claimant:	Yvonne Martinez
Adjuster:	Darin Tyler

7-18-23 - Claim opened for a side impact collsiion at a signalized intersection. Insured veihcle was struck on the driver's side by a vehicle that entered on a red signal. Claimant reports left knee pain and limited mobility after the impact. Police report requested. Photos of both vehicles received from the insured.

7-19-23 - Spoke with the claimant by phone. Claimant is not represented by an attorney and says they are handling the matter directly. Claimant describes striking the left knee on the door frame during impact and has ongoing pain when bending or bearing weight. Claimant states they visited an urgent care clinic the same day. Requested copies of visit records and imaging, if any, with signed authorization.

7-25-23 - Reviewed the police report. Officer noted the other driver admitted to not stopping for the red light. Witness statement from a pedestrian at the corner supports the account that the at-fault vehicle entered the intersection late. Liability appears clear in favor of our insured, pending final review of the scene diagram.

7-26-23 - Received medical documentation from the urgent care clinic. Diagnosis listed as a contusion and sprain of the left knee. Recommended follow-up with an orthopedic provider if symptoms persist beyond two weeks. Claimant has not yet scheduled that follow-up. Sent a letter explaining the claim process and the right to request an independent medical review.

7-28-23 - Followed up with the claimant. Claimant reports the knee is improving with rest and over-the-counter pain relief but still feels unstable on stairs. Discussed that the claim file will remain open until treatment is complete and a final medical report is received. Scheduled a reminder to recheck status in thirty days and to confirm the orthopedic referral was followed through.

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Recorded Statement

Claim number:	C-1033
Statement of:	Yvonne Martinez
Taken by:	Darin Tyler
Date:	7-24-23

Q: Thanks for taking the time to speak with me today. This recorded statement is about the collision at the interesction in Baytown, Texas. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Can you tell me in your own words what happened?

A: I was driving through the intersection on a green light. A vehicle coming from my right did not stop for its red light and hit the driver's side of my car.

Q: Did you see the other vehicle before the impact?

A: Not really. I saw something move out of the corner of my eye, but there was no time to react. It happened very fast.

Q: Were you wearing your seatbelt?

A: Yes, I was.

Q: Where did you feel the impact, and how did your body move?

A: The impact was on my side, so the car spun a little and my body pushed against the door. My right knee hit the dashboard area and then the door frame.

Q: Did you get out of the vehicle right away?

A: I got out with some help. My knee was hurting badly and I couldn't put much weight on it.

Q: Have you seen a doctor since the accident?

A: Yes, I went to the emergency room that same day. They took X-rays and told me to follow up with an orthopedic specialist for my knee.

Q: Are you currently receiving any treatment for the knee?

A: Yes, I have physical therapy twice a week and I'm still using a brace when I walk for long periods.

Q: Before this accident, did you have any problems with that same knee?

A: No, not that I can recall. It had been fine.

Q: Is there anything else you think I should know about the accident or your injuries?

A: I just want to get my car repaired and my knee back to normal. I'm willing to provide any medical records you need.

Q: Thank you. That concludes this statement.

A: Thank you.